

DEPARTMENT TWENTY-TWO  
HONORABLE ALESIA JONES  
707-207-7322

**TENTATIVE RULINGS  
AND  
PROBATE PREGRANTS**

**CALENDAR DATE: May 20, 2026**

**ADVISEMENTS**

**Probate Notes:** Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

**Civil Tentative Rulings and Probate Pregrants:** Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

**Appearances by Zoom:** Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

**Zoom Meeting ID:** 160 941 6482

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• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS  
START ON THE NEXT PAGE**

**9:00 a.m. CALENDAR**

LINE

1

**WELLS FARGO BANK, N.A. v. BURINGRUD  
CL25-03565**

Further Hearing re: Motion for Judgment on the Pleadings

**TENTATIVE RULING**

Parties are to appear, with Plaintiff's counsel to advise the court as to how it obtained and confirmed the new address identified on proofs of service recently filed for the motion papers and amended notice of hearing.

LINE

2

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**IN THE MATTER OF THE ELISEO MONTEJANO BARRIGA AND ESTHER  
BARRIGA REVOCABLE TRUST  
PR24-00307**

Status Review Hearing

**PREGRANT ORDER**

This matter was continued from February 7, 2025, May 9, 2025, August 8, 2025, and November 12, 2025 to allow the parties to mediate. The court has reviewed the status conference statement with the copy of the settlement agreement filed by the petitioner on April 20, 2026. The court notes that a Notice of Motion for Trustee Fees was filed April 29, 2026 which is set for hearing on June 8, 2026.

The court on its own motion continues this hearing to June 8, 2026 at 9:30 a.m. in Department 22.

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**9:01 a.m. CALENDAR**

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LINE

4

**JP MORGAN CHASE BANK v. PANIAGUA  
CL24-09235**

Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted

TENTATIVE RULING

The Plaintiff's unopposed Motion for Order that Matters in Request for Admission of Truth of Fact be Deemed Admitted is GRANTED.

LINE

5

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**JULIO MEJIA RODRIGUEZ v. GREEN VALLEY PAINTING, INC. and IAN LILLIBRIDGE  
Case No. CU25-03192**

Motion for Preliminary Approval of PAGA & Class Action Settlement

TENTATIVE RULING

Plaintiff JULIO MEJIA RODRIGUEZ moves for preliminary approval of the settlement reached with Defendants GREEN VALLEY PAINTING, INC. and IAN LILLIBRIDGE in Plaintiff's class action and Private Attorneys General Act ("PAGA") suit against them for labor law violations.

**Preliminary Review of Class Action Settlement.** Settlements of class actions are governed by California Rule of Court rule 3.769. Subsection (c) requires a preliminary approval by the court of the settlement after the settlement agreement and proposed class notice have been filed with the court and a proposed order has been lodged with the court. The settlement agreement and proposed class notice were filed with this motion. (Declaration of Young Ryu in Support of Motion ("Ryu Dec.") at ¶ 10, Exhibit 1; Notice of Errata filed 5/13/2026.) There is a proposed order granting preliminary approval formally and separately lodged in the case file.

Here, the settlement occurred subsequent to mediation with a neutral mediator. (Ryu Dec. at ¶¶ 9-10.) The involvement of a neutral mediator is normally a factor to be given considerable weight in maintaining the presumption that the settlement is the product of arms'-length negotiation. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129.) In this matter, however, the settlement was effected months after the mediation, minimizing the weight afforded to the presence of a neutral mediator earlier in the process. Nonetheless, nothing in the terms of settlement suggests preferential treatment or conflicts of interest among the proposed class members. The class members appear to be fairly treated according to their harms suffered.

The court requests that counsel appear prepared to discuss the reasonableness of the Total Settlement Amount of \$160,000 as compared to estimates of Defendants' potential liability. Counsel declares that between the damages for the claims and the penalties for statutory violations Defendants' exposure could have exceeded seven million dollars, potentially running as high as twenty million dollars. (Ryu Dec. at ¶¶ 20-39.) Further information on the evidence obtained and reviewed and the appropriateness of the discounts applied to calculate Plaintiff's likely recovery at trial in light of that evidence is requested.

**Notice to Class Members; Certification.** Certification is a procedure by which the court determines whether the plaintiff is a proper class representative and the action can proceed to trial as a class action. To obtain class certification, the proposed class representative(s) must show (1) an ascertainable class of sufficient size as to justify class action treatment ("numerosity") and (2) a well-defined community of interest in questions of fact and law. (*Vasquez v. Superior Court* (1971) 4 Cal.3d 800, 809.) The factors the court considers in determining the community of interest element are (1) the predominance of common issues, (2) the typicality of the claims of the proposed class members, and (3) the ability of the proposed class representative to adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Plaintiff has preliminarily established the requirements for class certification. The class is numerous at approximately 91 persons. The class is also readily ascertainable as its members are all in Defendants' employment records. As for the community of interest requirement, all proposed class members suffered the same harm from Defendants' employment policies, ensuring that common issues predominate among their claims and that the named plaintiff's claims are typical of the class. There is also no sign of any antagonism between the named plaintiff and the rest of the class. Lastly, Plaintiff's counsel appears up to the task of representing the class in light of their recitation of their experience with class actions and wage and hour cases in particular. (Ryu Dec. at ¶ 3-6.)

The proposed class notice provides extensive information to the recipients about what is going on, what their options are, and how to exercise their preferred option. (Notice of Errata filed 5/13/2026.) The notice explains that the recipient is receiving the notice because records indicate employment with Defendants in the class period. The notice states an estimated recovery and number of workweeks for the recipient, with information on how to submit more accurate information for payment. The notice tells the recipient that they will receive a payment with no action needed on their part but they may also exclude themselves from or object to the settlement, with explanations of what exclusion and objection mean. The notice is properly informative.

**Deductions.** The court observes that the issue of deductions is typically left to be explored in detail at the final approval stage; accordingly, Plaintiff's counsel makes minimal detailed argument in favor of particular deductions at this time. The court nonetheless conducts some analysis of the proposed deductions as part of preliminary evaluation of the reasonableness of the settlement.

Attorneys' fees in class action cases are typically based upon a percentage of the gross settlement amount, under the "common fund" doctrine, which spreads the cost of the attorney among all of the parties benefited (the class). The California Supreme Court explained the advantages and disadvantages of both the common fund method and the lodestar-multiplier method (hours worked by hourly rate, multiplied by a factor to account for risk and high quality of work) before endorsing the common fund method cross-checked by the lodestar-multiplier method in *Laffitte v. Robert Half International, Inc.* (2016) 1 Cal.5th 480, 489-490 (*Laffitte*). The court observes, again understanding that counsel has not yet advanced a detailed argument concerning the lodestar amount for this case, that this case resolved with much less work involved than *Laffitte*, which took eight and a half years and saw extensive written discovery, extensive law and motion practice, sixty-eight depositions, three summary judgment motions, a class certification motion, a motion for reconsideration of class certification, a motion to decertify the class, numerous experts, and two full-day mediations. In that context an award of one third of nineteen million dollars as attorneys' fees was not an abuse of discretion.

This case resolved less than a year after initiation without any formal discovery or motion practice. (Ryu Dec. at ¶¶ 9-10 [informal documents reviewed but discovery processes such as deposition not performed].) An attorneys' fees award of 20% of the Total Settlement Amount (\$32,000) is appropriate per the evidence before the court.

The court finds that review of counsel's claim of up to \$10,000 in costs is better conducted at final approval with the aid of a detailed memorandum of costs.

The claim of up to \$6,250 for settlement administration costs does not appear excessive.

The "service award" of \$5,000 for Plaintiff's personal efforts is not reasonable. At least one federal court has approved "reasonable incentive payments," tied to the amount of time and effort spent pursuing the litigation, and the degree to which the class benefited. (*Staton v. Boeing* (2003) 327 F.3d 938, 977.) A secondary source for California class action law provided a copy of a 2001 San Francisco Court order approving a settlement containing "incentive awards" of \$2,500 to certain class representatives who participated in discovery. (Cabraser, California Class Actions Practice and Procedure (2<sup>nd</sup> ed., September 2017 updated), Exhibit 15.) Plaintiff here provides evidence that he assisted the litigation largely only by communicating with his attorneys. (Declaration of Julio Mejia Rodriguez in Support of Motion at ¶¶ 5-6.) Plaintiff was not deposed and did not help answer formal discovery as neither litigation event came to pass. A service award of

\$2,500 for Plaintiff's personal efforts appears appropriate on the evidence before the court.

**Escalator Clause.** The settlement agreement states that aggrieved employees worked an estimated 8,300 compensable workweeks among them from April 4, 2021 to November 20, 2025. (Ryu Dec. at ¶ 10, Exhibit 1 [settlement agreement section 4.1].) The agreement contains an escalator clause stating that if it turned out that there were more than 10% more compensable workweeks in that time frame than estimated Defendants could elect to either increase the total settlement amount (by one percentage point for every percentage point past ten of increased pay periods; for example, if the total number of compensable periods turned out to be 13% higher than the estimate, Defendants would increase the total settlement amount by 3%) or elect to cut off the class claims period at the last point that the compensable period total did not exceed 110% of the estimate.

The escalator clause's provision permitting Defendants to elect to cut the class period short is not fair or reasonable. The election provision gives Defendants control over the definition and size of the class Plaintiff purports to represent. It is not fair or reasonable to permit Defendants to choose to curtail the class if it does not align with the original estimate. Further, the escalator clause provision permitting an increase of up to 10% in identified compensable workweeks with no matching increase in compensation to the class is not fair or reasonable. There is no stated basis for permitting Defendants to ignore a certain number of labor law violations or to effectively diminish compensation to the entire class via the escalator clause as written. Relatedly, the escalator clause does not account for increases over the estimated number of PAGA compensable pay periods, meaning it does not conform with the PAGA's goal of thorough and accurate enforcement of state labor laws.

**Conclusion.** Plaintiff's motion is denied.

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**9:30 a.m. CALENDAR**

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LINE

6

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**IN THE MATTER OF THE ZACHARY WOOD SPECIAL NEEDS TRUST  
FPR045592**

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Sixth Account Current and Report of Trustee; for Authorization to Pay Trustee's Attorneys' Fees; Approval; of Fees Paid to Trust Advisory Committee; Removal of Florentina Valdez from the Trust Advisory Committee

**PREGRANT ORDER**

The court on its own motion continues this hearing to July 15, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

The petitioner obtained a surcharge order against the beneficiary's mother, Carla Wood, but it does not appear from the accounting that she has made any payments

on that surcharge. The petitioner shall explain whether they are enforcing the surcharge order.

LINE

7

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**IN THE MATTER OF THE CRYSTAL VALDEZ SPECIAL NEEDS TRUST  
FPR046094**

Sixth Account Current and Report of Trustee; for Authorization to Pay Trustee's Attorneys' Fees; Approval; of Fees Paid to Trust Advisory Committee; Removal of Florentina Valdez from the Trust Advisory Committee

**PREGRANT ORDER**

This matter was continued from March 19, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the First Supplement filed May 6, 2026 which did not resolve all of the issues.

The court on its own motion continues this hearing to July 16, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The petitioner is requesting payment for trust advisory fees to IBAR. However, there is no declaration on file by IBAR Settlement Co. concerning their fees. (Solano Local Rule 7.104b.)
2. The Supplement was verified by the attorney, not the trust officer. Probate Code section 1021(b) requires the petitioner as the fiduciary to verify the documents.

LINE

8

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**IN RE THE ESTATE OF SAMUEL MICHAEL KLEIMAN, DECEASED  
FPR048079**

Amended Report of Sale and Petition for Order Confirming Sale of Real Property

**PREGRANT ORDER**

This matter was continued from October 16, 2025, December 4, 2025, January 28, 2026, and March 25, 2026 to allow the petitioner to address issues with the petition for order. The court has reviewed the amended Report of Sale and the Supplement which did not resolve all of the outstanding issues.

The court on its own motion continues this hearing to July 22, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The proof of publication on file has not yet been filed, although the petitioner expects to have the corrected proof by the hearing date.

2. The decedent was survived by a sister, Rachel Kleiman, who later died and would be the sole heir of the estate, not the decedent's pre-deceased spouse's parent. The court has not made a finding that Carol Talbot is the sole heir of the estate.

LINE

9

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**IN RE THE SPECIAL NEEDS TRUST OF KEVIN TURZER**  
**FPR050643**

Verified Third Account of Trustee and Petition for its Approval and to Allow Compensation to Trustee and to Trustee's Attorneys

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed.

LINE

10

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**IN RE THE SPECIAL NEEDS TRUST OF HARLEY GAGE**  
**PR24-00267**

Verified First Account of Trustee and Petition for its Approval and to Allow Compensation to Trustee and to Trustee's Attorneys

PREGRANT ORDER

The court on its own motion continues this hearing to July 16, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

The accounting period ended on March 7, 2025, but the petition was not filed until April 7, 2026. The petitioner shall explain the 13-month delay in filing this petition.

LINE

11

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**IN RE THE ESTATE OF NAVARRE MARSHALL, DECEASED**  
**PR24-00417**

Petition for Order Approving First and Final Report of Executor on Waiver of Account; for Approval of Settlement Agreement; for Allowance of Compensation to Attorneys for Ordinary Services; and for Final Distribution

PREGRANT ORDER



The court on its own motion continues this hearing to July 23, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 11601.
2. The petitioner was appointed on August 30, 2024, but did not obtain the signed Order until November 7, 2024 or her Letters until February 13, 2025. The petitioner shall explain the 2-month delay in obtaining the Order and the 5 ½ month delay in obtaining her Letters.
3. Neither of the filed Inventory and Appraisal (item 5) forms certify that the requirements of Revenue and Taxation Code § 480 have been satisfied.
4. Petition, item 7: The petition does not address whether notice was given to the Franchise Tax Board as required by Probate Code section 9202, subdivision (c).
5. Petition, item 14: The corrected Inventory listed assets that are titled in the name of the decedent's Trust. Those assets are not part of the estate. The petitioner shall explain why they were marshalled as part of the estate.
6. Petition, item 29: Because the petition's statutory compensation calculation uses values other than those shown in the Inventory and Appraisal, a detailed schedule of gains or losses is required for assets that have been sold or disposed of, even though an accounting has been waived. (Cal. Rules of Court, rule 7.550, subd. (b).)
7. There is no Waiver of Accounting signed by Winfield Baggett who appears to be an intestate heir of the decedent through her brother. The petitioner shall explain.

LINE

12

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**IN RE THE ESTATE OF BETTY JEAN CARLSON, DECEASED**  
**PR24-00439**

Amended First and Final Report of Administrator on Waiver of Accounting and Petition for Statutory Fees and Costs, and for Final Distribution

**PREGRANT ORDER**

The court on its own motion continues this hearing to July 29, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

Petition, item 27: The sole asset of the estate was lost due to the deed in lieu of foreclosure. Losses on sale must be included in the calculation of the statutory fees. The petitioner shall explain.

LINE

13

**IN RE THE ESTATE OF HERMAN RAYMUNDO VILLARROEL, DECEASED  
PR25-00279**

Amended Petition for Letters of Administration

PREGRANT ORDER

This matter was continued from June 18, 2025, September 5, 2025, December 19, 2025, and March 12, 2026 to allow the petitioner to address the issues with the petition and amended petition. The court has reviewed the amended Notice of Petition filed March 13, 2026 which did not resolve the remaining outstanding issue.

The court on its own motion continues this hearing to July 15, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

The Vacaville Reporter is not a newspaper of general circulation for Vallejo. (See Prob. Code § 8120 et seq.) Publication must be done in the correct newspaper of general circulation.

LINE

14

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**IN RE THE COMPROMISE OF USNIK CHAHAL, A MINOR  
PR25-00338**

Second Amended Petition for Approval of Compromise of Claim or Action of Disposition of Proceeds of Judgment for Minor or Person with a Disability

PREGRANT ORDER

Counsel and Petitioner are to appear. Remote appearances are approved.

LINE

15

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**IN RE THE ESTATE OF CHRISTOPHER ALAN WILLIAMS, DECEASED  
PR25-00621**

Second Amended Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act with Limited Authority

PREGRANT ORDER

This matter was previously continued from October 30, 2025, January 28, 2026, and April 1, 2026 to allow the petitioner to address issues with the petition and amended petition. The court has reviewed the 2<sup>nd</sup> amended petition filed May 12, 2026 which did not resolve all of the outstanding issues.

The court on its own motion continues this hearing to July 15, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

The Vacaville Reporter is not a newspaper of general circulation for Vallejo. (See Prob. Code § 8121, et seq.) Publication must be done in a newspaper of general circulation where the decedent's property is located.

LINE

16

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**THE DONALD D. GIANNINI REVOCABLE LIVING TRUST OF 2016, AS  
AMENDED AND RESTATED  
PR25-00803**

Petition for: (1) Order for Accounting; (2) Order for Suspension, Removal and Replacement of Trustee; (3) Order to Quiet Title and to Recover Estate Assets; (4) Undue Influence – Invalidation of Purported Estate Planning Documents and Damages; (5) Fraud – Rescission and Damages; (6) Order Voiding Purported Estate Planning Instruments Under Probate Code Section 21380, *et seq.*; (7) Order for Damages and Attorney's Fees Under Welfare & Institutions Code Section 15610.30 and Probate Code Section 859; (8) Unjust Enrichment/Restitution; (9) Damages – Intentional Interference with Expected Inheritance; (10) Constructive Trust/Blocked Account; (11) Order that Respondent Be Deemed to Have Predeceased Settlor Under Probate Code Section 259; and (12) Order Preventing Respondent from Using Trust Assets to Defend this Action (Prob. Code §§ 259, 850-859, 15642, 17200, 21380; W&I Code § 15610 et seq.)

Respondent/Trustee's Objection to Petition for: (1) Order for Accounting; (2) Order for Suspension; (3) Order to Quiet Title and To Recover Estate Assets; (4) Undue Influence — Invalidation of Purported Estate Planning Instruments and Damages; (5) Fraud — Rescission and Damages; (6) Order Voiding Purported Estate Planning Instruments Under Probate Code Section 21380, et seq.; (7) Order for Damages and Attorney Fees under Welfare & Institutions Code Section 15610.30 and Probate Code Section 859; (8) Unjust Enrichment/Restitution; (9) Damages — Intentional Interference with Expected Inheritance; (10) Constructive Trust/Blocked Account; (11) Respondent Be Deemed to Have Predeceased Settlor Under Probate Code Section 259; and (12) Order Preventing Respondent from Using Trust Assets to Defendant This Action

Reply to Respondent/Trustee's Objection to Petition for: (1) Order for Accounting; (2) Order for Suspension; (3) Order to Quiet Title and Recover Estate Assets; (4) Undue Influence — Invalidation of Purported Estate Planning Instruments and Damages; (5) Fraud — Rescission and Damages; (6) Order Voiding Purported Estate Planning Instruments Under Probate Code Section 21380, et seq.; (7) Order for Damages and Attorney Fees Under Welfare and Institutions Code Section 15610.30 and Probate Code Section 859; (8) Unjust Enrichment/Restitution; (9) Damages — Intentional Interference with Expected Inheritance; (10) Constructive Trust/Blocked Account; (11) Respondent Be Deemed to Have Predeceased Settlor Under Probate Code Section 259; and (12) Order Preventing Respondent from Using Trust Assets to Defend this Action

PREGRANT ORDER

This matter was continued from February 9, 2026 and April 1, 2026 to allow the petitioner to address the issue with service of the petition. The court has reviewed the Proof of Service filed April 7, 2026 which resolved the outstanding issue with the petition.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Possibility of mediation; timeline for discovery; and timeline for trial.

LINE

17

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**IN RE THE ESTATE OF DONALD L. FOSTER, DECEASED**  
**PR26-00044**

Amended Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from March 18, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the documents filed April 3, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The amended petition is granted as prayed.

The court appoints Kenneth Aaron Foster as administrator with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for October 19, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for July 19, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend

this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

18

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**IN RE THE ESTATE OF LEE GARY BOOKER, DECEASED**  
**PR26-00115**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

Objection to Lomia Chapman's Petition to Administer Estate

Petitioner Lomia Booker Chapman's Response to Objection of Donnailla Johnson and Memorandum of Points and Authorities in Support of Petition for Letters Of Administration

PREGRANT ORDER

This matter was continued from April 8, 2026 to allow the objector to file her objection which was filed May 4, 2026.

Counsel and parties may appear via Zoom, in person, or by CourtCall.

LINE

19

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**IN RE THE ESTATE OF RICHARD LAWRENCE HARTWIG, DECEASED**  
**PR26-00142**

Petition for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from April 27, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Response filed April 24, 2026 and the Declaration filed April 28, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The court appoints Shari Mansfield as administrator with full authority under the Independent Administration of Estates Act.

Bond is set at \$455,000.00. Letters shall not issue until bond is posted with the clerk. The personal representative shall sua sponte apply for an increase in bond in the event the aggregate value of the estate's assets exceeds \$455,000.00.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for October 16, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for July 19, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

LINE

20

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**IN RE THE ESTATE OF HOMER LEROY MOORE, DECEASED  
PR26-00199**

Petition for Probate of Will and for Letters Testamentary

**PREGRANT ORDER**

The court on its own motion continues this hearing to July 22, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. The original will is not on file. (Probate Code § 8200.)
2. Petition, item 2: The name of the petitioner must be listed.
3. Petition, item 2.b: No proposed personal representative is named.
4. Petition, item 2.d: Either (1), (2), or (3) must be marked.
5. Petition, item 3.a: The decedent's date and place of death must be stated.
6. Petition, item 3.c: The decedent's address must be provided (Probate Code § 8002(a)(2)).
7. Petition, item 3.d: An estimated value of the estate must be provided. (Prob. Code § 8002(a)(4).)
8. Petition, item 3.f: Either (1), (2), or (3) must be marked.

9. Petition, item 3.g(1) and (2): Petitioner shall mark one of the boxes under (1) or (2).
10. Petition, item 3.h: Either (1) or (2) must be marked. Either (3) or (4) must be marked.
11. Petition, item 5.a: Either (1) or (2) must be marked. Either (3) or (4) must be marked. Either (5) or (6) must be marked. Either (7) or (8) must be marked.
12. Petition, item 5.b: Either (was) or (was not) must be marked.
13. Petition, item 6: The first applicable box must be marked.
14. Petition, item 7: The first applicable box must be marked.
15. Petition, item 9: The petition must also be signed by the self-represented litigant on the attorney signature line. (Probate Code §§ 1020, 1021; California Rules of Court, Rule 7.103.)
16. Duties and Liabilities of Personal Representative (DE-147): The telephone number for the personal representative is missing.
17. The Proof of Service at item 2 states that the documents were mailed from Kristina Clark's address, but the Proof of Service is signed by Gloria Boddie. The petitioner shall explain.
18. There is no proof of publication on file. (Prob. Code § 8124.)

LINE

21

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**IN RE THE ESTATE OF BRIAN RICHARD MARCOLINI, DECEASED  
PR26-00200**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The court appoints Tyler Marcolini as administrator with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for October 16, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for July 19, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

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